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Provision of January 16, 2025

Register of provisions

n. 11 of January 16, 2025

THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN THE meeting held today, attended by
Prof. Pasquale Stanzione, President, Prof.
Ginevra Cerrina Feroni, Vice President, Dr.
Agostino Ghiglia and Attorney Guido Scorza, Members, and
Counsel Fabio Mattei, Secretary General;

HAVING REGARD TO Regulation (EU) 2016/679 of the European Parliament
and of the Council, of April 27, 2016, concerning
the protection of natural persons with regard to
the processing of personal data, as well as the free
movement of such data and repealing Directive
95/46/EC (General Data Protection Regulation, hereinafter “Regulation”);

HAVING REGARD TO the Code concerning the protection of personal data
(legislative decree June 30, 2003, n. 196), as
amended by legislative decree August 10, 2018, n. 101, containing
provisions for the adaptation of the national
legal system to the aforementioned Regulation (hereinafter
“Code”);

HAVING REGARD TO the documentation on file;

HAVING REGARD TO the observations made by the Secretary
General pursuant to Article 15 of the Regulation of
the Guarantor n. 1/2000;

REPORTING Attorney Guido Scorza;

PREMISED

1. The acts received by the Authority and the preliminary
investigation conducted
Several complaints (reports and claims) have been received
by the Authority between May 2022 and April 2024, in which it was
reported the receipt of promotional communications
made by real estate agencies that, at the request
of the interested parties, informed them that they had
acquired personal data (including mobile phone numbers) from Realmaps S.r.l. (hereinafter
“Realmaps” or “Company”), indicating, in response to
the interested parties, an email address of
such Company for the exercise of rights (XX). Only
in one case (file n. 360344) did the Company provide
a response to the interested party claiming to have
acquired the personal data from XX (owner of the website
XX), as the main supplier of Realmaps. In light of the described conduct, the
Authority deemed it necessary to verify the methods of
processing personal data carried out by
Realmaps for marketing purposes and, therefore, on
April 9 and 10, 2024, conducted an
inspection at the legal headquarters of
the Company.

2. The inspection activity carried out by the Authority at the company headquarters and related outcomes During the inspection, it emerged that Realmaps is engaged in providing a clientele of real estate agencies with a list of data of property owners located in a specific area of interest, including telephone numbers (landline and mobile) and cadastral information related to the properties. Specifically, at the request of the real estate agency (acting as a client interested in a specific area), the Company acquires the cadastral data of the properties located in that specific geographical area through access to public registers, such as SISTER and the archives of the Land Agency. The real estate data thus acquired flows into the Realmaps database, which also includes the personal data provided by list providers, including name, surname, telephone number (landline or mobile), tax code, residential address, and email address. Through a specific software (called "Automatch"), the cadastral data (organized in regional tables containing information on properties and their respective owners in the corresponding provinces and municipalities) is cross-referenced with the telephone number registered to the property owner in order to send to the real estate agency/client, a single list containing, therefore, also the contact data necessary for the conduct of marketing activities.

2.1. Personal data acquired from list providers

The Company indicated the suppliers from which it would have purchased the lists of personal data to be transferred, for a fee, to the real estate agencies/clients for their marketing purposes. The list providers - from which Realmaps would have availed itself in the years 2022, 2023, and 2024 - are attributable to the companies XX (main supplier), XX, and XX.

The Company, clarifying its role as "intermediary" in the transfer of data from one controller to another (specifically, from the supplier to the real estate agency/client), stated that it does not periodically conduct "sample checks" on the lawfulness of the acquired lists (with particular reference to compliance with information and consent) due to the guarantees offered by the list provider in the contractual phase. Relying on such contractual guarantees, and counting on the positive outcomes of the established collaboration, there would not have been, according to the Company, the need to exercise a control power over the acquired lists and the lawfulness of the contacts transferred as allegedly "consented." Sporadic checks are carried out by Realmaps upon the renewal of

the contract with the list provider or at the specific request of the interested parties (see p. 4 of the minutes of April 9, 2024). The Company has not produced evidence of such checks, nor has it been able to indicate a defined timeline and the percentage of sampling.

In this context, noting the above circumstance, the qualification of mere intermediary that Realmaps would have attributed to itself must be excluded, as the same company, having established the purposes and methods of processing the data. the expertise of various professionals. In this context, it is essential to qualify the roles of the subjects authorized to access the Realmaps database.

2.2.1. Identification of Authorized Personnel

Realmaps must ensure that only authorized personnel have access to the database. This includes defining the specific roles and responsibilities of each individual who will interact with the data, as well as implementing appropriate security measures to protect personal data.

2.2.2. Training and Awareness

All personnel authorized to access the database must undergo training regarding data protection regulations and the importance of safeguarding personal data. This training should cover the legal obligations under the Regulation, as well as the internal policies and procedures established by Realmaps.

2.2.3. Monitoring and Compliance

Realmaps should implement monitoring mechanisms to ensure compliance with data protection policies. Regular audits and assessments should be conducted to verify that authorized personnel adhere to the established protocols and that any unauthorized access is promptly addressed.

2.2.4. Documentation of Access

A log of all access to the database should be maintained, detailing who accessed the data, when, and for what purpose. This documentation is crucial for accountability and for demonstrating compliance with data protection obligations.

2.2.5. Revocation of Access

In the event that an individual no longer requires access to the database, Realmaps must have a procedure in place to promptly revoke that access. This ensures that personal data is only accessible to those who need it for legitimate purposes.

In conclusion, the qualification of roles and responsibilities of those authorized to access the Realmaps database is a critical aspect of ensuring compliance with data protection regulations and safeguarding personal data.

system support (XX, now XX) with which it formalized the collaboration relationship, through the signing of a contract, only in September 2023. From 2021 (the year the collaboration began) to 2023, the Company maintained an informal relationship with XX (see page 2 of the minutes of April 10, 2024), which would have carried out the processing of the personal data in question on behalf of Realmaps. Access to the database is granted not only to the aforementioned ICT service provider but also to the employees of Realmaps who are responsible for managing quotes. In this regard, a list of operators authorized to consult the database and to carry out the related filtering and cross-referencing operations of the data contained therein (referred to in the database as "users") has been produced to fulfill the requests of the Agencies/clients (see communication sent via email by the Company on April 11, 2024). From the analysis of the screenshots obtained during the inspection (see attachment 11 to the minutes of April 10, 2024), it also emerged that some former employees of Realmaps, although lacking a contract and a formal assignment, would have been granted access to the database for the entire duration of the collaboration and, in some cases, even before the employment relationship

began and even after its conclusion. In fact, accesses to the database were recorded in April 2024 by a collaborator who, according to the Company, would have worked occasionally in 2023. Furthermore, it emerged that some access operations were carried out by individuals not clearly identified and, in any case, different from those authorized by Realmaps; in particular, entries in the database were attributed to a generic "operator_it" and to "develop," active since 2022.

In this context, it should be noted that the aforementioned processing activities (access, consultation, filtering, cross-referencing), which refer to a wide range of interested parties, were carried out in the absence of a formal "assignment of functions and tasks to designated subjects" for the processing of personal data, pursuant to Article 2-quaterdecies of the Code. Therefore, a violation of the provisions of Articles 28 and 29 of the Regulation and the principles of privacy by design (Article 25 of the Regulation) and accountability (pursuant to Articles 5, paragraph 2, and 24 of the Regulation) has been deemed to be established. Furthermore, the unrestricted accessibility to the database by a multitude of subjects, not all included in the corporate organization of Realmaps, in violation of Article 2-quaterdecies of the Code (as in the case of the ICT service provider), constitutes a gap in security measures such as to consider the violation of Article 5, paragraph 1, letter f) of the Regulation as well as Article 32, paragraph 1, letters b) and d), and paragraph 2 of the Regulation, concerning the "ability to ensure on a permanent basis the confidentiality [and] integrity" of the processed data and to adopt "a procedure to test, verify, and regularly evaluate the effectiveness of technical and organizational measures to ensure the security of processing" (see paragraph 2: "In assessing the appropriate level of security, particular consideration is given to the risks presented by processing that arise in particular from the destruction, loss, alteration, unauthorized disclosure, or accidental or unlawful access to personal data transmitted, stored, or otherwise processed").

The Company also stated that it had not prepared the Record of Processing Activities, as per Article 30 of the Regulation, nor had a data protection officer been appointed (Article 37 of the Regulation), nor had a data protection impact assessment been carried out, pursuant to Article 35 of the same Regulation (see page 4 of the minutes of April 9, 2024); obligations that, in this case, would have been necessary given the systematic and invasive nature of the processing regarding the rights and freedoms of the data subjects. Therefore, a violation of Articles 30, 35, and 37 of the Regulation has also been contested.

2.3. Exercise of Rights and Investigative Outcomes Related to Complaints Received by the Authority

In relation to the handling of requests for the exercise of rights, it has been established that, as a rule, real estate agencies/clients - in response to requests from data subjects for information on the processing of their personal data in the context of the complained commercial activity - indicate an email address associated with Realmaps (XX). This email appears to be monitored by the "privacy consultant" of Realmaps (who, as mentioned, has been found to lack a formal designation or an act of appointment recognizing their responsibilities), who forwards the request first to the list provider (in most cases to the main supplier XX, at the email address XX to obtain information on the existence of consent related to a personal record and a telephone number, and, secondly, to the company XX to register the opposition by inserting the concerned number into the "excluded_numbers" table. Sometimes it is the same "privacy consultant" who contacts the data subjects/requesters by phone to provide them with a verbal response and subsequently proceeds with the insertion of the number into the "excluded_numbers" table (see pages 4 and 5 of the minutes of April 10, 2024).

With reference to the specific complaints received by the Authority, which led to the aforementioned inspection, it emerged that only in one case (file no. 295373) did the number of the data subject appear among the "excluded_numbers." In contrast, the telephone numbers of data subjects who had opposed the processing of their personal data through formal communication to Realmaps (files no. 198910 – 255444 – 319814 – 360344) were found to be included in the "numbers" table, and therefore contactable. In other cases, the telephone numbers targeted by unwanted contacts were not found within the Company's database (see files no. 302375 – 223355 – 245765).

Regarding the aforementioned complaints, however, the opposition/deletion requests submitted by the

data subjects were not found in the dedicated email inbox for handling requests from data subjects (XX), nor were the alleged responses from the Company. This is because, for some of these requests (files no. 198910 – 209288 – 302375 - 319814), the data subjects used the Company's certified email address (XX), which was recently replaced by a new digital domicile (XX) registered with the Chamber of Commerce on February 12, 2024 (see page 5 of the minutes of April 10, 2024 and Attachment 9). In this regard, the scant communications (n. 3) related to the exercise of rights received at Realmaps' new certified email address were viewed. In two cases, despite the opposition expressed by the data subjects and assurances from Realmaps to one of them, the telephone numbers were still found to be present in the table of contactable users (table "numbers").

In light of the above, it emerged that, in general, the requests for the exercise of the rights of the data subjects were not found to be addressed, nor, in almost all cases analyzed by the Authority, were the requests for deletion of records accepted, as they were found, upon further checks, in the list of contactable users (table "numbers").

It should also be noted that the possible inclusion of the concerned user in the aforementioned "excluded_numbers" table does not appear to be an adequate solution to ensure the management of the right to object, considering that the same table appeared devoid of any reference that would allow for contextualizing and specifying the will of the data subjects in this regard. A conduct inconsistent with the obligation of the data controller to facilitate, with appropriate measures, the exercise of the rights provided for by the legislation in this area and to satisfy, without delay, the related requests, including the right to object which can be raised "at any time," has thus been observed. Therefore, a violation of Article 12 paragraphs 2 and 3, as well as Article 21, paragraph 2, of the Regulation has been deemed to be established.

2.4. Data Retention Periods

The Company currently retains a significant amount of data in its database, the collection of which has not been sufficiently specified, particularly with regard to the date of acquisition of such information. Consequently, the failure to indicate the date of data upload into the database does not allow for an understanding of the retention periods of the same; nor is it possible to reconstruct the history of alleged (but undocumented) consents in the absence of any temporal placement, potentially resulting in an indefinite retention of data. This gap cannot even be overcome by generically referring to the terms contained in contracts entered into with suppliers, as the tacit renewal of such agreements over the years (as represented by the Company during the inspection) could lead to retention periods significantly longer than those indicated in the contracts themselves.

It has therefore been deemed that a violation of the principle of data retention limitation under Article 5, paragraph 1, letter e) of the Regulation has been established.

2.5. Processing of Personal Data via Website

With reference to the website, accessible at the link <https://...>, it is reported that following the completion of the online form, prepared on the homepage to request quotes and obtain information about the products and services offered, is required to check a box indicating a generic authorization for the processing of personal data. Furthermore, although there is a dedicated link to the privacy policy, it leads to an empty page, devoid of content, as previously verified by the Office prior to the inspection assessment. The Company has claimed that the data collected through the aforementioned online form can be processed for the provision of the service (response to the user's request for information) but also for commercial purposes (see minutes of April 10, 2024, p. 6). The Office noted that the lack of a privacy notice does not clarify what processing of the data collected through the online form occurs and for what purposes the same data is used, nor where it is directed and stored. This gap was not remedied even during the resolution of the reservations on April 30, 2024 (see attachment 4) since the Company merely stated that the data of users who fill out the aforementioned online form arrives in the email box XX "as requests for information and [...] for follow-up." Based on the statements made by the Company during the inspection assessment, the setup of the website, as described above, allows for the conclusion

that the registration of the user through the online form is conditioned upon the simultaneous granting of a single consent for the distinct purposes of service provision and marketing. Such consent, which is neither specific nor freely given, does not constitute an adequate legal basis for the aforementioned processing, pursuant to Articles 6 and 7 of the Regulation. Therefore, a violation of Articles 5, paragraph 1, letters a), 6, paragraph 1, letter a), 7, and 12, paragraph 1, of the Regulation has been deemed configurably established.

3. Notification of the alleged violations pursuant to Article 166, paragraph 5, of the Code

Based on the above, on May 14, 2024, the Company was notified of the alleged violation of the following provisions:

Article 5, paragraph 1, letters a), e), and f) and paragraph 2;

Article 6, paragraph 1, letter a);

Article 7;

Article 12, paragraphs 1, 2, and 3;

Article 13;

Article 14;

Article 21, paragraph 2;

Article 24;

Article 25;

Article 28;

Article 29;

Article 30;

Article 32, paragraph 1, letters b) and d) and paragraph 2;

Article 35;

Article 37

and Article 2-quaterdecies of the Code.

With the same note, the Authority also communicated the initiation of the procedure for the adoption of the measures referred to in Article 58, paragraph 2, of the Regulation and for the possible application of monetary sanctions referred to in Article 83, paragraphs 4 and 5, of the Regulation (note ref. prot. no. 0058339/24 of May 14, 2024).

4. The defense of Realmaps and the corresponding legal evaluations of the Authority

On June 13, 2024, Realmaps responded to the aforementioned notice by sending a defensive memorandum (the content of which, particularly regarding the corrective actions taken, was reiterated during the hearing held on July 8, 2024, and confirmed in the integration of July 15, 2024). In consideration of the reasons reported below (to which, for further detail, reference is made in full), Realmaps requested the Authority, "if [...] it finds any violation," that "the sanction of payment of a sum nonetheless contained be applied."

4.1. With reference to point 2.1. of this provision (Data acquired from list providers), the Company preliminarily clarified that it has "cautiously suspended the processing of data consisting of their communication to real estate agencies [...]" and represented and documented that it has requested from XX, the main supplier of Realmaps, evidence of the consents and information provided to the data subjects. In its relationship with the list providers (particularly with XX), the Company, "having examined the contractual agreements but above all the factual elements and circumstances of the case," considered that a situation of joint data controller exists, rather than exclusive ownership by Realmaps. This is because, according to the Company, the requirement of "joint participation" with the list providers in defining the processing methods would emerge, as referred to in the EDPB Guidelines 7/2020 on the concepts of controller and processor. Specifically, XX would have jointly defined with the Company the processing methods, exclusively concerning the management of requests for the exercise of the rights of the data subjects; this activity, based on the technical-commercial annex produced in support of the contract signed with Realmaps, would be entirely the responsibility of the list provider. In other words, since XX, according to the contractual agreements, is tasked with handling requests regarding the processing of personal data that data subjects initially direct to

Realmaps (at the indication of the real estate agencies, as represented in point 1 of this provision), this list provider is to be considered a joint controller as it participates, jointly with the Company, in defining the described processing method. That said, the Company confirmed that it had relied "in good faith" on compliance with the regulations regarding the protection of personal data.

of the acquired lists, also considering the assurances "on the correctness of the collection of consents" provided by XX, already in the pre-contractual phase, through a form delivered to Realmaps, which was defined by the same as "difficult to understand." "Considering the quality of co-controllers between Realmaps and the list providers," the Company continued, "it was neither necessary for the former to acquire, for the purposes of processing, the consent of the data subjects, nor for it to provide any information to the latter, as such obligations, by express contractual provision, are the responsibility of the co-controller list provider."

As reconstructed in point 2.1 (the arguments of which are to be fully referenced), taking into account what the Company asserted in the defense memorandum and confirmed during the hearing, it is not possible to overcome the reasons for contestation expressed in the initiation of the procedure. Therefore, it is confirmed that Realmaps is the data controller not only with respect to the fulfillment of requests for the exercise of the rights of the data subjects but also concerning all further phases of processing. This is because the collection, storage, processing, and transmission to third parties of personal data constitute processing operations carried out by Realmaps entirely independently of the database management procedures of the list providers. The Company, in fact, has organized its database by drawing from various sources (public registers - lists from third parties) and using sophisticated software capable of cross-referencing the data at its disposal (cadastral and personal data) in order to offer a commercial product to real estate agencies/clients. These processing operations are not shared with the list provider and are excluded from its scope of intervention but are solely attributable to an operational mode that Realmaps has consolidated over the years of its activity.

It should be added that, with the exception of the contract signed with XX., of the list providers that Realmaps would have used in providing the personal data to be subsequently transferred to the client real estate agencies, only the copy of the commercial agreement made with XX has been produced, which, as represented in point 2.1, would have in turn acquired the data from a third party, established outside the European Union.

As the data controller, Realmaps is, therefore, liable for the violations identified in point 2.1 of this provision, with particular reference to the absence of checks on the alleged legality of the lists acquired from the suppliers and, therefore, on the existence of consent that authorized processing for commercial purposes by third parties to whom the personal data were communicated, as well as on the provision of suitable information to the data subjects. An explicit request in this regard was made by Realmaps only after the notice of contestation and, moreover, with reference solely to the personal data acquired from XX. and not also to those, equally numerous, transferred by the other suppliers (XX and XX).

In light of the above, it is deemed necessary to confirm the violation of Articles 5, paragraph 2, 24, 13, 14, 6, paragraph 1, letter a) and 7 of the Regulation.

4.2. With reference to point 2.2 of this provision (Qualification of the roles of the subjects authorized to access the Realmaps database), the Company clarified that only XX., a provider of ICT services, possesses the access credentials to the Realmaps database; the employees and collaborators of the latter, instead, "access only the Automatch program to formulate the estimates to be sent to the client agencies via a link, which only the agencies access, through a password."

Furthermore, in the supplementary note of July 15, 2024, with which the Company intended to clarify some profiles that emerged during the defense memorandum, Realmaps admitted that it had not proceeded with the formal designation of all subjects authorized to access the database and, on this occasion, produced the appointment documents of some employees authorized to access and of the data protection officer related to the company XX. It also specified that the subjects "not clearly identified and in any case different from those authorized [...] attributable to a generic operator_it and

to develop [...]” refer to “general accounts used and usable by system operators [...]”. Finally, while declaring itself aware of the volume of data processed, Realmaps assured that it would “provide differentiated identifying credentials among various subjects and formal authorizations” as well as prepare a DPIA and the Register of processing activities. On July 15, 2024, to resolve the reservations expressed during the hearing, the Company transmitted the appointment document of the DPO (signed on July 10, 2024), of which the contact details were communicated to the Authority on July 19, 2024, in compliance with Article 37, paragraph 7, of the Regulation.

In light of the above, first of all, it should be noted that the use of the software called “Automatch” - with which the data of property owners located in the area of interest of the Agency/Client are selected and extracted - involves, in any case, operations of access to the Realmaps database. In fact, the “Automatch” software is nothing more than an application that facilitates the search in the Company's database for subjects not necessarily equipped with appropriate technical skills; this software allows downloading the results of the search in the form of “csv files,” called “download file mapping” and “download file numbers,” which contain the lists of data requested by Realmaps' clients (see attachment 11 to the minutes of April 10, 2024).

It is necessary to clarify that the “csv” format of the files allows for easy export of structured data (stored in a database or spreadsheet, for example) and import into other programs, in order to visualize and reuse it. The “csv” files used by the employees of the Company therefore allow for the creation of partial or total copies of the Realmaps database. Moreover, contrary to what the Company claims, there appears to be a real possibility for its collaborators to view the data contained in the files to be sent to the real estate agencies, as evidenced during the inspection, since for such files the password to open the file itself is indicated, which therefore cannot be said to be exclusively the prerogative of the client (the purchasing real estate agency).

Furthermore, in light of what has been represented by the Company, the “general accounts used and usable by system operators” are configured, in fact, as system-type credentials shared among multiple users of the Realmaps platform. This setup raises critical issues regarding the actual possibility of attributing accesses to the formally authorized subject for processing. Access through shared and non-personal accounts also undermines the effectiveness, for example, of controls on log files and the application of measures provided by the Authority's provision of November 27, 2008, regarding system administrators, which is still considered valid as a guideline (at www.gpdp.it, web doc. no. 1577499 – “Measures and precautions prescribed for data controllers processing with electronic tools regarding the attribution of system administrator functions,” modified by the provision of June 25, 2009). In fact, paragraph 4.3 of the aforementioned provision contains the measure to prepare a list of system administrators indicating the “identifying details of the physical persons who are system administrators along with the list of functions assigned to them [...]”. In this case, this measure has been completely ignored by the Company since access to the system is also operated by subjects with non-nominative but shared credentials and in the absence of the related assignments.

In the defense memorandum and following the hearing, only the contracts signed with three employees of the Company were produced, one of which is with a minority partner. Moreover, this collaborator, contracted on March 29, 2024, does not appear among the subjects who had access to the Realmaps database as early as 2022 (as per attachment 11 to the minutes of April 10, 2024). Conversely, regarding one of the other two employees of Realmaps, whose contracts were produced, it emerged that this collaborator had access to the Company's database during a period prior to the formalization of the employment relationship and the related designation as a data processing officer (see cited attachment 11 to the minutes of April 10, 2024). In fact, this appointment was formalized on July 23, 2023, despite access being recorded as early as May 2023. In relation to all other collaborators - authorized to consult the database and, as described in point 2.2 of this provision, to the related operations of filtering and cross-referencing the data contained therein for the management of estimates to real estate agencies/clients - no contracts or formal agreements defining the scope of intervention on the personal data and the methods of processing them have been produced; the Company, in fact, declared that it had not proceeded with a formal designation of the subjects

authorized to access the Realmaps database. This is particularly detrimental to the security of the systems given the easy accessibility of the database by a multitude of subjects, not all included in the corporate organization of Realmaps.

The described setup has proven to be affected by vulnerabilities related to the risk, deemed high, in terms of loss of confidentiality, integrity, and availability of the involved data. In fact, as extensively represented above, it is possible to extract a considerable amount of data contained in the Realmaps database and make it accessible/viewable to anyone (to unauthorized subjects and to real estate agencies that request it, for a fee), resulting, in fact, in massive and uncontrolled processing of the same data.

Therefore - while acknowledging the improvement measures adopted by the Company following the Authority's contestation (some of which are in the definition phase: identifying credentials for subjects formally authorized to access the database; DPIA; Record of processing activities) - with reference to the processing already carried out and subject to the inspection assessment, it is deemed appropriate to confirm the violations contested in point 2.2 of this provision (arts. 5, par. 1, lett. f; 5, par. 2; 24; 25; 28; 29; 30; 32, par. 1, lett. b and d; 32, par. 2; 35; 37 of the Regulation and art. 2-quaterdecies of the Code).

4.3. With reference to point 2.3 of this provision (Exercise of rights and outcomes of investigations related to complaints received by the Authority), the Company, in a note dated July 15, 2024 - reiterating the method used for processing requests for the exercise of the rights of the data subjects, consisting of the transfer of requests from the real estate agency to Realmaps and from the latter to the supplier - confirmed the role of co-controller of XX and specified the following: "the list provider delivered to the client [Realmaps], to reassure her about the correctness of the collection of consents, a form, which was presented as a tool that provided that each request from data subjects would be managed directly by XX."
of the data retention period.

4.5. Regarding the point 2.5 of this provision (Data Retention Period), the Company has argued that it was established in 2021 "and therefore cannot be held responsible for exceeding the data retention period for marketing purposes [...] which is two years. Moreover, it is possible to derive the initial date from the moment of sharing the data with the List Provider."

It should be noted, first of all, that the two-year retention period for marketing purposes invoked by the Company is a temporal parameter indicated in the provision regarding "Fidelity cards and consumer guarantees" adopted by the Authority on February 24, 2005 (available at www.gpdp.it, document web no. 1103045). This provision, with the entry into force of Regulation (EU) 2016/679, has taken on the value of a non-binding guideline since the paradigm shift introduced by European legislation has recognized the data controller's overall responsibility for the processing of personal data (accountability), including the definition of the retention periods for personal data being processed. Therefore, in exercising its accountability, the data controller "is required to implement appropriate and effective measures and to be able to demonstrate compliance of processing activities with the [...] regulation" (see Recital 74 of the Regulation, in this regard see Articles 5 and 24 of the Regulation), including compliance with the principles of purpose limitation, data minimization, and storage limitation, pursuant to Article 5, paragraph 1, letters b), c), and e) of the Regulation. Ultimately, in light of the European regulatory framework, the aforementioned provision aims to guide the choices of the data controller, including with regard to retention periods (setting the general rule of two years); however, the decision on processing and related timelines rests solely with the data controller itself.

Having clarified this, even considering the temporal parameters indicated in the aforementioned provision, it is observed that the two-year period invoked by the Company, at the time of the inspection, which took place in April 2024, had nonetheless expired. Furthermore, as already stated in point 2.4 of this provision, it is not possible to trace back to the moment of data upload into the Company's systems for the start of the retention period; this is because the database was found to lack temporal references and the tacit renewal of supply contracts with list providers does not allow for a

clear definition of the scope of the retention period.
of retention which, therefore, could be
longer than the terms indicated in the contracts
themselves.

Therefore, the violation of the principle of
data retention limitation as per Article 5,
paragraph 1, letter e) of the Regulation is confirmed.

4.5. With reference to point 2.5. of this
provision (Processing of personal data
via the website), the Company has stated
that, during the inspection, “a
problem with the link to the privacy notice [...]” was verified,
the text of which, revised, has been made available online
as of July 6, 2024.

From a check of the Company’s website, it
is confirmed that the gap identified during the inspection
has been remedied; in fact, it is
possible to view the text of the privacy notice
via a specific link at the bottom of the home
page. However, issues related to the setup of the online form present
on the Realmaps website appear to persist, particularly
regarding the mandatory acquisition of a single
generic consent for the processing of personal data
(cited as “I consent to the processing of my
personal data for receiving information about
Realmaps”).

From reading the privacy notice currently
available on the Company’s website, it has been
ascertained that the processing carried out
through the aforementioned online form is aimed at
“managing activities related to the type of
request that are for consultancy and/or
commercial purposes, including the sending of advertising
material and technical/economic offers”; it follows that the consent obtained in the formulation
just illustrated does not appear suitable as it aims to
combine in a single solution the different purposes
of service provision and marketing.

In this regard, it should be reiterated, at this
point, that the capacity for self-determination of data subjects is not
respected when the actual and
informed freedom of choice regarding the processing
of their personal data is not ensured, and such a defect of legitimacy
is relevant for the applicability of violations
of data protection regulations (in
particular those related to consent), regardless of whether or not the
proposed processing activities have been carried out (see provision “Online
services: request for 'mandatory' consent for
promotional purposes”, point 3.1. - October 27, 2016,
no. 439, web doc no. 5687770; provision June 12, 2019,
no. 130, point 3, web doc no. 9120218; at
www.gpdp.it).

It should also be noted that the “link problem”

that would have justified the temporary inaccessibility of the privacy policy text has prevented data subjects from obtaining information regarding the processing of their personal data at least for the period of time highlighted by the Authority. In fact, this informational gap was ascertained by the Authority on January 26, 2024, prior to the inspection, and formalized in a specific record of operations carried out (ref. prot. no. 24/24 of January 29, 2024). At the time of the inspection, which took place in April 2024, three months after the remote assessment, the notice continued to be unavailable on the Company's website, which, moreover, was unaware of this and only addressed it after the Authority's intervention and following the initiation of the procedure on May 14, 2024. Additionally, the new text of the notice contains the indication of the old PEC address of the Company (XX) which was replaced on February 12, 2024, with a new digital domicile.

The indication of an incorrect contact - as it is no longer used by the Company - compromises the exercise of rights by data subjects.

In light of the above, due to the lack of transparency regarding the processing and the inadequate legal basis

for the consent requested upon completion of the online form, the violation of Articles 5, paragraph 1, letter a), 6, paragraph 1, letter a), 7 and 12, paragraph 1, of the Regulation is confirmed.

5. Conclusions

Based on the above overall exposition, while acknowledging the initiatives taken by the Company following the Authority's contestation, with reference to the processing already carried out and subject to the inspection assessment, the responsibility of Realmaps is deemed established regarding the violation of the following provisions:

Articles 5, paragraph 1, letters a), e) and f) and paragraph 2; 6, paragraph 1, letter a); 7; 12, paragraphs 1, 2 and 3; 13; 14; 21, paragraph 2; 24; 25; 28; 29; 30; 32, paragraph 1, letters b) and d) and paragraph 2; 35; 37

and Article 2-quaterdecies of the Code.

Therefore, having established the illegality of the above-described conduct of the Company, it is necessary to:

- pursuant to Article 58, paragraph 2, letter f) of the Regulation, prohibit any further processing for commercial purposes carried out through lists, even acquired from suppliers (list providers), for which the Company does not have free, specific, and informed consent for the communication of data to third parties for promotional purposes (Articles 6 and 7 of the Regulation);

- pursuant to Article 58, paragraph 2, letter d), of the Regulation, order the Company, should it intend

to engage in promotional activities in the future through the marketing of telephone numbers provided by third parties, to adopt suitable procedures aimed at constantly verifying, including through appropriate random checks, that personal data are processed in full compliance with the relevant provisions (acquisition in advance of free, specific, unequivocal, documented, as well as informed consent from data subjects for the sending of commercial communications) (Articles 6, 7 and 14 of the Regulation);

- pursuant to Article 58, paragraph 2, letter d) of the Regulation, to order Realmaps to adopt appropriate technical and organizational measures to facilitate the exercise of the rights provided for by the legislation on personal data protection and to satisfy, without unjustified delay, the related requests, including the right to object that may be raised "at any time" by the data subject (Articles 15, 17, and 21, paragraph 2, of the Regulation);

- pursuant to Article 58, paragraph 2, letter d) of the Regulation, to order that the operations on personal data carried out both by partner entities and by its employees and collaborators who access the Realmaps database be preceded by their designation, respectively as data processors and authorized persons for the various phases of processing (Articles 28 and 29 of the Regulation and Article 2 quaterdecies of the Code);

- pursuant to Article 58, paragraph 2, letter f) of the Regulation, to prohibit the processing of personal data collected through the website <https://...> without having obtained the necessary prior informed, free, and specific consent of the data subjects in relation to marketing activities, pursuant to Articles 6 and 7 of the Regulation and Article 130 of the Code; it is also deemed necessary to order, pursuant to Article 58, paragraph 2, letter d) of the Regulation, to indicate in the privacy notice the correct email address to which requests for the exercise of rights regarding the processing of personal data should be directed, pursuant to Articles 12 and 13 of the Regulation. Finally, regarding the processing already carried out and considering the violations identified above, it is believed that the conditions exist for the application of an administrative pecuniary sanction pursuant to Articles 58, paragraph 2, letter i) and 83 of the Regulation.

6. Order for the application of the administrative pecuniary sanction

Based on the above, various provisions of the Regulation and the Code related to processing carried out by Realmaps are found to be violated, for which it is necessary to apply Article 83, paragraph 3, of the Regulation, according to which, "if, in relation to the same processing or related processing, a data controller violates, with intent or negligence, various provisions of the Regulation, the total amount of the administrative pecuniary sanction does not exceed the amount specified for the most serious violation," resulting in the application of only the sanction provided for by Article 83, paragraph 5, of the Regulation. For the determination of the amount of the sanction, which must "in any case [be] effective, proportionate, and dissuasive" (Article 83, paragraph 1), it is necessary to take into account the elements indicated in Article 83, paragraph 2, of the Regulation. As aggravating circumstances, it is deemed appropriate to consider:

- 1) the high number of subjects involved in the contested processing (Article 83, paragraph 2, letter a of the Regulation): in the table titled "numbers," containing the contactable users, there were 32,510 records provided by XX, 2,052,933 from XX, 112,117 from XX, and 10,049 from XX. To the users acquired from the list providers, the large volume of data from property owners "downloaded" from public registers, such as SISTER and the Archives of the Agency of the Territory, is added;
- 2) the severity of the violations detected (Article 83, paragraph 2, letter a of the Regulation) with particular reference to the absence of random checks of the numbers provided by the list providers, the inadequate management of the right to object of the data subjects, as well as the lack of control over processing carried out by entities not expressly authorized, with possible repercussions also on the data security front; such failures refer to "systemic" behaviors, thus rooted in corporate procedures;
- 3) the duration of the processing carried out for years and interrupted only following the intervention of

the Guarantor (Article 83, paragraph 2, letter a of the Regulation);

4) the severely negligent nature of the violation, as the Company has demonstrated negligence in the processing of personal data (Article 83, paragraph 2, letter b of the Regulation);

5) the overall assessment of the Company's economic capacity, taking into account the latest available corporate turnover (as resulting from the VAT declaration 2024 for the tax period of the year 2023): the Company, for the tax period of 2023, recorded an increase in turnover of almost double that of the previous year (2022) (Article 83, paragraph 2, letter k of the Regulation). As mitigating factors, it is deemed necessary to consider:

1) the adoption of corrective measures, some of which were initiated immediately after the conclusion of the inspection assessments, and which partially reflect the prescriptions imposed by this provision (Article 83, paragraph 2, letter c of the Regulation);

2) the absence of previous proceedings initiated against the data controller (Article 83, paragraph 2, letter e of the Regulation);

3) the cooperation with this Authority in the context of the inspection assessment and the consequent proceedings (Article 83, paragraph 2, letter f of the Regulation). Based on the overall elements indicated above, in application of the aforementioned principles of effectiveness, proportionality, and dissuasiveness, as per Article 83, paragraph 1, of the Regulation, also taking into account the necessary balancing between the rights of the data subjects and the freedom of enterprise, in order to limit the economic impact of the sanction on the

organizational, functional, and employment needs of the Company, it is deemed that the administrative sanction of a payment of one hundred thousand euros (€100,000.00), equivalent to approximately 0.5% of the maximum administrative fine of 20 million euros, should be applied to Realmaps.

In this case, it is also considered that the accessory sanction of publication on the website of the Authority of this provision, as provided for by Article 166, paragraph 7, of the Code and Article 16 of the Authority's Regulation No. 1/2019, should be applied.

In implementation of the principles set forth in Article 83 of the Regulation, the imposition of this accessory sanction appears proportionate in light of the severity and particular disvalue of the conduct subject to censure, specifically with regard to the high number of subjects involved and the massive processing (which lasted for years) carried out concerning their personal data, as noted in points 1 and 3 of the aggravating circumstances presented above.

Moreover, the failure to adopt security measures that could ensure the integrity and confidentiality of the data, including a formal designation of the subjects authorized to access the company systems, along with the lack of a verification procedure for lists acquired from third parties, demonstrates a culpable insensitivity to the issue of personal data protection.

It is reminded that pursuant to Article 170 of the Code, anyone who, being obliged, does not comply with this prohibition on processing is punished with imprisonment from three months to two years, and that, in case of non-compliance with the same provision, the sanction referred to in Article 83, paragraph 5, letter e) of the Regulation is also applied administratively.

Finally, the prerequisites referred to in Article 17 of Regulation No. 1/2019 concerning internal procedures of external relevance, aimed at carrying out the tasks and exercising the powers entrusted to the Authority, for the annotation of the violations identified here in the internal register of the Authority, as provided for by Article 57, paragraph 1, letter u) of the Regulation, are present.

ALL OF THE ABOVE CONSIDERED, THE AUTHORITY

a) pursuant to Article 57, paragraph 1, letter f) of the Regulation, declares unlawful, in the terms stated in the motivation, the processing carried out by the company Realmaps S.r.l., with registered office in Milan, Via San Gregorio No. 55, VAT No. 01741190084;

b) pursuant to Article 58, paragraph 2, letter f) of the Regulation, prohibits Realmaps S.r.l. from any further processing for commercial purposes carried out through lists, including those acquired from suppliers (list providers), for which the Company does not have free, specific, and informed consent for

the communication of data to third parties for promotional purposes (Articles 6 and 7 of the Regulation);

c) pursuant to Article 58, paragraph 2, letter d) of the Regulation, orders the Company, should it intend to carry out promotional activities in the future through the marketing of telephone numbers provided by third parties, to adopt suitable procedures aimed at constantly verifying, including through appropriate sample checks, that personal data is processed in full compliance with the relevant provisions (prior acquisition of free, specific, unequivocal, documented, and informed consent from the data subjects for the sending of commercial communications) (Articles 6, 7, and 14 of the Regulation);

d) pursuant to Article 58, paragraph 2, letter d) of the Regulation, orders Realmaps S.r.l. to adopt appropriate technical and organizational measures to facilitate the exercise of rights provided for by the legislation on personal data protection and to satisfy, without undue delay, the related requests, including the right to object that may be raised "at any time" by the data subject (Articles 15, 17, and 21, paragraph 2, of the Regulation);

e) pursuant to Article 58, paragraph 2, letter d) of the Regulation, orders the Company to ensure that the processing operations on personal data carried out by both partner subjects and its own employees and collaborators who access the Realmaps database are preceded by their designation, respectively, as responsible and authorized persons for the various phases of processing (Articles 28 and 29 of the Regulation and Article 2 quaterdecies of the Code);

f) pursuant to Article 58, paragraph 2, letter f) of the Regulation, prohibits the processing of personal data collected through the website <https://...> without having obtained the necessary prior informed, free, and specific consent from the data subjects in relation to marketing activities, pursuant to Articles 6 and 7 of the Regulation and Article 130 of the Code; it also orders, pursuant to Article 58, paragraph 2, letter d) of the Regulation, to indicate in the privacy notice the correct email address to which requests for the exercise of rights regarding the processing of personal data should be sent, pursuant to Articles 12 and 13 of the Regulation.

g) pursuant to Article 157 of the Code, orders the Company to communicate to the Authority, within 30 days from the notification of this provision, the initiatives undertaken to implement the imposed measures; any failure to comply with the provisions of this point may result in the application of the administrative monetary sanction provided for by Article 83, paragraph 5, of the Regulation.

ORDERS

pursuant to Article 58, paragraph 2, letter i) of the Regulation, Realmaps S.r.l., represented by its legal representative, to pay the sum of one hundred thousand euros (€100,000.00), as an administrative monetary sanction for the violations indicated.

****In motivation; it is represented that the offender, pursuant to Article 166, paragraph 8, of the Code, has the option to settle the dispute by paying, within 30 days, an amount equal to half of the imposed sanction,****

****ORDERS****

the aforementioned Company, in the event of failure to settle the dispute pursuant to Article 166, paragraph 8, of the Code, to pay the sum of €100,000.00 (one hundred thousand/00), according to the methods indicated in the attachment, within 30 days from the notification of this provision, under penalty of the adoption of subsequent enforcement actions in accordance with Article 27 of Law No. 689/1981;

****DECIDES****

a) pursuant to Article 166, paragraph 7, of the Code, the full publication of this injunction order on the website of the Guarantor;

b) pursuant to Article 17 of the Guarantor's Regulation No. 1/2019, the annotation in the internal register of the Authority, as provided for in Article 57, paragraph 1, letter u) of the Regulation, of the violations and the measures adopted;

c) the publication of this provision pursuant to Articles 154-bis of the Code and 37 of the

aforementioned Regulation No. 1/2019.

Pursuant to Article 78 of Regulation (EU) 2016/679, as well as Articles 152 of the Code and 10 of Legislative Decree No. 150 of September 1, 2011, an appeal against this provision may be filed with the ordinary judicial authority, with a petition submitted to the ordinary court of the place where the data controller resides, or, alternatively, to the court of the place of residence of the data subject, within thirty days from the date of communication of the provision itself, or sixty days if the appellant resides abroad.

Rome, January 16, 2025

THE PRESIDENT

Stanzione

THE REPORTER

Scorza

THE SECRETARY GENERAL

Mattei